# The Supreme Court's Growing Hostility to Arguments of Death Row Inmates

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Two weeks ago, on the same day it heard arguments about the future of abortion rights in Texas, the Supreme Court turned down an appeal from a federal prisoner facing execution.

The move was in one sense routine, as the court has grown increasingly hostile to arguments made by death row inmates. This became apparent in the final months of the Trump administration, when, after a hiatus of 17 years, the federal government executed 13 inmates.

"Throughout this expedited spree of executions, this court has consistently rejected inmates' credible claims for relief," Justice Sonia Sotomayor wrote in a dissent at the time.

The court's impatience was also evident last week at an argument over whether an inmate's pastor could pray with and touch him in the death chamber. Several conservative justices expressed dismay at what they said was last-minute litigation gamesmanship in death penalty cases.

Still, the case the court turned down two weeks ago was exceptional, providing a telling glimpse of the state of capital punishment in the United States. The court rejected the inmate's petition even though the prosecution agreed that his case deserved a fresh look.

In an 11-page dissent, Justice Sotomayor, joined by Justices Stephen G. Breyer and Elena Kagan, said the majority had crossed a new bridge.

"To my knowledge, the court has never before denied" such relief "in a capital case where both parties have requested it, let alone where a new development has cast the decision below into such doubt," Justice Sotomayor wrote.

The case concerned Wesley P. Coonce Jr., who was serving a life sentence for kidnapping and carjacking when he helped murder another prisoner in the mental health ward of a federal prison. A murder committed by an inmate already serving a life sentence is a capital crime, and he was sentenced to death.

Lawyers for Mr. Coonce asked the justices to return his case to an appeals court for reconsideration of his argument that he could not be executed because he was intellectually disabled. There had been, the lawyers wrote, an important new development that could alter the appeals court's analysis.

The prosecution supported the request.

"The government agrees" that a fresh look "would be appropriate in light of a significant intervening factual change that affects a central predicate of the court of appeals' Eighth Amendment analysis," wrote Elizabeth B. Prelogar, who has since been confirmed as the U.S. solicitor general.

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